

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

April 16, 2026

8:30 a.m./1:30 p.m.

7. LINDSAY MOFFETT V. PETER MOFFETT

24FL1070

On July 24, 2025, the parties appeared for the hearing on Petitioner's March 28, 2025, filed Request for Order (RFO). The parties reached agreements, including setting a review hearing for November 20, 2025.

Respondent filed a Request to Reschedule the November 20th hearing as the vocational evaluation was still pending. The court granted the Request to Reschedule and set the hearing for January 29, 2026. That hearing was once again continued to the present date.

On March 12, 2026, Respondent filed and served his Income and Expense Declaration. On April 9th, Respondent filed and served a Supplemental Declaration of Peter Moffett.

Respondent makes the following requests: (1) Set guideline pendente lite child support; (2) Set no spousal support; and (3) Order Petitioner to seek work consistent with the findings in Patrick Sullivan's report and her recent work experience.

After reviewing the filings, the court is making the following support orders. For the period of May 1, 2026 through July 14, 2026, the court is adopting the Xspouse attached as Exhibit B to Respondent's Supplemental Declaration and Respondent is ordered to pay Petitioner \$2,917 per month for child support and \$594 for spousal support. Commencing on July 14, 2026 and continuing thereafter until further order of the court or termination by operation of law, the court is adopting the Xspouse report attached as Exhibit C to Respondent's Supplemental Declaration and Respondent is ordered to pay Petitioner \$1,745 as and for child support and \$648 for spousal support.

The court is reserving jurisdiction over the issue of an arrears overpayment until the time of trial.

Petitioner is ordered to comply with the recommendations made in Patrick Sullivan's November 24, 2025 vocational evaluation report.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: FOR THE PERIOD OF MAY 1, 2026 THROUGH JULY 14, 2026, THE COURT IS ADOPTING THE XSPOUSE ATTACHED AS EXHIBIT B TO RESPONDENT'S

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SUPPLEMENTAL DECLARATION AND RESPONDENT IS ORDERED TO PAY PETITIONER \$2,917 PER MONTH FOR CHILD SUPPORT AND \$594 FOR SPOUSAL SUPPORT. COMMENCING ON JULY 14, 2026 AND CONTINUING THEREAFTER UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW, THE COURT IS ADOPTING THE XSPOUSE REPORT ATTACHED AS EXHIBIT C TO RESPONDENT'S SUPPLEMENTAL DECLARATION AND RESPONDENT IS ORDERED TO PAY PETITIONER \$1,745 AS AND FOR CHILD SUPPORT AND \$648 FOR SPOUSAL SUPPORT.

THE COURT IS RESERVING JURISDICTION OVER THE ISSUE OF AN ARREARS OVERPAYMENT UNTIL THE TIME OF TRIAL.

PETITIONER IS ORDERED TO COMPLY WITH THE RECOMMENDATIONS MADE IN PATRICK SULLIVAN'S NOVEMBER 24, 2025 VOCATIONAL EVALUATION REPORT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.